

Arbitration Agreement. (Brittain Decl., Ex. A.)

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration agreement.” (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Plaintiff’s opposition is silent as to Defendant’s request for a stay. The Court finds good cause to stay this action in granting Defendant’s Motion to Compel Arbitration.

Conclusion

Defendant’s motion to compel arbitration is **GRANTED**. The Court orders the Parties to submit their dispute to arbitration in accordance with the Arbitration Provision in the subject Lease Agreement. The Court orders this matter to be **STAYED** in full, pending conclusion of the arbitration.

The Court sets a Case Management Conference (CMC) / Arbitration Status Review **on March 23, 2027, in Dept. 34 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration not less than ten (10) court days prior to the CMC.** Parties may appear at the CMC by Zoom.

13. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

14. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
***HEARING ON MOTION IN RE: TO STRIKE**
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.